

தமிழ்நாடு तमिलनाडु TAMILNADU

22/3/2022

Professor and Head
Institute of Animal Nutrition.
Kattupakkam.

CP 378625

D. VIJAYAKUMAR
24, NELLIKUPPAM ROA
GUDUVANCHERY - 603
L.No. 9578/A1/2000/07-09-

An Agreement made on this day 23rd March 2022 between M/s. NIHVA Technologies Private Limited, Chinchwad, Pune, Maharashtra - 411019 (herein after called 'Seller' which expression shall, where the context so permits, include his heirs, executors, legal representatives and assigns) on the one part and the FINANCE OFFICER, Tamil Nadu Veterinary and Animal Sciences University (herein after called the 'Payer' which expression shall, where the context so permit include his successors in office and assigns) on the other part.

WHEREAS the seller agrees to sell and the buyer agrees to purchase upon the terms and conditions hereinafter set forth 23th March 2022 described in the schedule hereunto written.

Now this agreement witnessed and the parties hereto mutually agree as follows.

L. Radhakrishnan

CONDITIONS

1. This agreement shall be in force on and from the first day of 23.03.2022 to 22.03.2023.

But in the event of any breach of agreement on the part of the seller the agreement shall be terminable at any time by the buyer without any compensation to the seller. The agreement may be terminated at any time by the buyer upon giving thirty day's notice to the seller.

2. Any employee of the Tamil Nadu Veterinary and Animal Sciences University duly authorized by the buyer in this behalf shall place indent with the seller, by Registered Post Acknowledgement Due. The employees shall place the indent during the period specified in condition 1 above and in any case not later than 22.03.2023.

3. The seller hereby warrants that the goods or materials delivered by him under this agreement will be suitable and may be used for the purpose for which the buyer is purchasing the same and in every respect equal and answerable to the pattern or samples tendered already for the test by the University. If it is found at any time that the items delivered by the seller are not up to specifications already approved by the University or defective or substandard, such items shall be removed by and at the expense of the seller within seven days after the receipt of notice by him of such rejection, if the rejected goods or materials are not removed within the period specified above, the indenting employee shall cause the goods to be returned or rebooked and charge the seller with all expenses including the cost of transportation. The seller shall replace such rejected goods by fresh goods which shall also be subject to inspection and acceptance or rejection and other conditions.

4. All indents placed with the seller be delivered free on rail destination to any place in Tamil Nadu Railway Station as specified by the buyer. Packing, forwarding, insurance and other incidental charges will be borne by the seller.

5. All items delivered shall be booked by passenger Train or recognized Roadways well packed to avert any damages during transit. The seller shall be held responsible for any damages during transit and any damages shall be replaced.

6. All indents placed with the seller by indenting officers shall be dispatched within the delivery time noted below

Items those are not ordinarily available in the Market and not manufactured in India on or before 23.07.2022

Failure to supply the items ordered as per the delivery period noted above may entail a penalty of 1 to 2 percent at Buyer's discretion depending upon the period of delay. The buyer at his discretion may waive the above penalty if the

L. Radhakrishnan.

seller seeks for extension of delivery time with adequate reasons justifying such extension. But in any case the Supply, Installation, testing and commissioning of fully automatic TANUVAS GRAND Production plant (Capacity – 15,000 litres /day or 25,000 bottles /day @ 600ml/ bottle) with all accessories shall be completed before 23.07.2022.The cut prescribed above shall be deducted for the bills of the seller. The buyer shall be at liberty to terminate this agreement on the grounds of undue delay in getting the articles and purchase the same elsewhere in which case the seller shall be liable to pay all the loss incurred in purchasing the goods elsewhere including the difference in price. Such sum as may be found due on this account may be deducted from the caution deposit.

7. The cuts imposed under condition 6 shall be deducted from the caution deposit at the time of refund, if not already deducted while settling the bills.

8. Undue delay in **Supply, Installation, testing and commissioning of fully automatic TANUVAS GRAND Production plant (Capacity – 15,000 litres /day or 25,000 bottles /day @ 600ml/ bottle) with all accessories** shall result in cancellation of the indents at the buyers discretion and removal of name of the seller from the approved list besides forfeiture of caution deposit in full. For failure to **Supply, Installation, testing and commissioning of fully automatic TANUVAS GRAND Production plant (Capacity – 15,000 litres /day or 25,000 bottles /day @ 600ml/ bottle) with all accessories** in full as per agreement executed or for the failure to **Supply, Installation, testing and commissioning of fully automatic TANUVAS GRAND Production plant (Capacity – 15,000 litres /day or 25,000 bottles /day @ 600ml/ bottle) with all accessories** as per orders placed the caution deposit will be forfeited in full. In other cases, proportionate cut will be effected in the caution deposit at the discretion of the buyer on the merit of the case.

9. This agreement or any part thereof shall not be transferred or assigned by the seller directly or indirectly to any person or persons whomsoever without the written consent of the buyer whose decision on all matters shall be final. The buyer reserves in full or in part during the course of the agreement the tender offered without assigning any reason thereof. In any case of any dispute or difference of opinion on any matter relation to the agreement the decision of the buyer shall be final and binding on the seller and shall not be subject to question on any ground either in the form of appeal in any court of the law or otherwise.

10. Any notice to the seller shall be deemed to be valid and sufficient if given or left in writing at his usual or last known place of business.

L. Radhakrishnan.

11. Upon the complete fulfilment of this agreement by the seller to the satisfaction of the buyer or any officer duly authorized by him. The sum of Rs. 4,72,500/- (Rupees Four lakhs seventy two thousand and five hundreds only) deposited as caution money by the seller shall be returned to him after deduction the amount if any due to the buyer. The caution deposit will be refunded only after One year from the closure of contract viz., **after verifying the commissioning of fully automatic TANUVAS GRAND Production plant (Capacity – 15,000 litres /day or 25,000 bottles /day @ 600ml/ bottle) with all accessories.** The caution deposit shall not bear any interest.

12. Standard warranty: one year from 23.03.2022 and 22.03.2023

S. No	Description of work	Qty	Rate (Rs.)	GST	Amount (Rs.)
1.	Supply, Installation, testing and commissioning of fully automatic TANUVAS GRAND Production plant (Capacity – 15,000 litres /day or 25,000 bottles /day @ 600ml/ bottle) with all accessories	1 No	90,00,000 /-	4,50,000 /- GST @ 5 %	94,50,000 /-
				Total	**94,50,000 /-**
				Rupees ninety four lakhs fifty thousand only (Inclusive of taxes and other charges)	

In witness where of Th.Vijay. M. Tarak, Director, Company Partner, M/s. NIHVA Technologies Private Limited, Chinchwad, Pune, Maharashtra – 411019 and the Finance Officer of Tamil Nadu Veterinary and Animal Sciences University, Madhavaram Milk Colony, Chennai acting for and by the orders and direction of the Tamil Nadu Veterinary and Animal Sciences University have hereunto set their hands.

Signed by Th.Vijay. M. Tarak, Director, Company Partner, M/s. NIHVA Technologies Private Limited, Chinchwad, Pune, Maharashtra - 411019, in the presence of ..Dr. R. Muruheswari and Pranav Marne

FOR AND ON BEHALF OF

PURCHASER 23/3/22

SUPPLIER

WITNESSES:

1. 23/3 R. MURUGESWARI.

2. 23/3 Pranav Marne.